

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: July 30, 2026

#	Case Name	Tentative
1.	30-2025-01481463 Meredith vs. Tissera	1. Case Management Conference 2. Demurrer to Complaint Defendant Franz Tissera (“Defendant” or “Franz”) demurs to the Complaint of plaintiff Edwin Hammond Meredith (“Plaintiff”). For the reasons set forth below, and based on applicable law, the Demurrer is OVERRULED in its entirety. Defendant argues that Plaintiff lacks capacity and legal authority to maintain this action because defendant Phase9MotorSports, Inc. (“Phase9MotorSports”) is currently a debtor in an active bankruptcy case. However, Plaintiff alleges that the bankruptcy petition was filed post-judgment in bad faith in an attempt to delay the entry of judgment and Plaintiff successfully moved to set aside the automatic stay. These allegations must be accepted as true for purposes of this Demurrer and Defendant has not shown that they are false by way of any judicially noticeable matters. Thus, this argument fails. Defendant argues that the Complaint is so vague, ambiguous, and unsupported that it is fatally uncertain. Demurrers for uncertainty “are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (<i>Lickiss v. Fin. Indus. Regulatory Auth.</i> (2012) 208 Cal.App.4th 1125, 1135.) The Complaint here does not reach this level of incomprehensibility. Thus, the Demurrer based on uncertainty fails. Defendant contends that the Complaint relies entirely on conclusory allegations based on information and belief without identifying a single concrete transfer, document date, VIN number, transaction, or factual details. “A plaintiff may allege on information and belief any matters that are not within his personal knowledge, <i>if he has information leading him to believe that the allegations are true</i> [citation], and thus a pleading made on information and belief is insufficient if it merely asserts the facts so alleged without alleging such information that leads the plaintiff to believe that the allegations are true.” (<i>Gomes v. Countrywide Home Loans, Inc.</i> (2011) 192 Cal.App.4th 1149, 1158, emphasis in original, internal quotations and citations omitted.) Here, Plaintiff alleges that transfers of vehicles were made from Phase9MotorSports to defendant Treasures MotorSports, LLC (“Treasures MotorSports”) to avoid the enforcement of Plaintiff’s judgment in a prior action, including at least three specific vehicles and a white Ferrari. Plaintiff further alleges that these transferred vehicles are being registered or re-registered in Montana and Wyoming under the names of the other individual defendants to obscure ownership and hinder creditors such as Plaintiff. The fact that Plaintiff does not allege dates or VIN numbers related to these transfers does not render the allegations inadequate, as this information would exclusively lie with Defendants. Further, Plaintiff has provided sufficient factual detail in support of the allegations made on information belief. Thus, at the pleading stage, the allegations are sufficient. Defendant contends that the Complaint suffers from misjoinder of Franz’s family members without alleging any facts connecting them to any purported transfer. This argument also fails. Plaintiff

alleges that Franz has been transferring the vehicles under the names of his family members to obscure ownership and void enforcement of the judgment and that the family members had actual or constructive notice of Plaintiff's judgment and participated in the prior fraud or asset concealment. These allegations are accepted as true for purposes of the Demurrer, pursuant to the law, and there is no misjoinder apparent on the face of the Complaint.

Next, Defendant argues that the suit is premature and Plaintiff lacks standing because the judgment is not final and remains subject to a potential new trial and may be further reviewed on appeal. Similarly to above, this argument fails because Plaintiff's allegations that he is a judgment creditor and his judgment has not been satisfied must be accepted as true and a reasonable inference from the allegations is that the judgment is final.

As to the first cause of action for fraudulent conveyance, Defendant further argues that the claim fails because Plaintiff does not identify which defendant is the debtor for each alleged transfer, much of the cause of action is directed at non-debtors, and Plaintiff fails to plead damages.

"A fraudulent transfer under the UVTA ' ' 'is a transfer by the debtor of property to a third person undertaken with the intent to prevent a creditor from reaching that interest to satisfy its claim.' [Citation.]" ' ' ' (Potter v. Alliance United Ins. Co. (2019) 37 Cal.App.5th 894, 903-904.) A transferee may be sued for fraudulent transfer if he or she knowingly participates in the fraudulent conveyance with the intention of defrauding creditors. (See *Flowers & Sons Development Corp. v. Municipal Court* (1978) 86 Cal.App.3d 818, 825.)

Here, Plaintiff alleges that a judgment in his favor against Franz and Phase9MotorSports was obtained in April 2024. Therefore, pursuant to the allegations in the Complaint, Franz and Phase9MotorSports are the debtors. Plaintiff also alleges that the remaining defendants are transferees who had actual or constructive notice of Plaintiff's judgment and were involved in the asset concealment. Plaintiff alleges that he has been harmed as a result of the transfers by the inability to enforce the judgment. These allegations satisfy each element of the cause of action. Thus, the Demurrer to the first cause of action fails.

As to the second cause of action, Defendant argues that the Complaint does not allege any elements in support of the mere continuation exception for successor liability.

"Successor liability is almost always couched in terms of liability flowing from one corporation to another corporation." (*Cleveland v. Johnson* (2012) 209 Cal.App.5th 1315, 1326.) A purchaser corporation will not assume the seller's liabilities absent certain circumstances, one being when the purchasing corporation is a mere continuation of the seller. (*Id.* at p. 1327.) Successor liability based on the mere continuation theory has been imposed " 'only upon a showing of **one or both** of the following factual elements: (1) no adequate consideration was given for the predecessor corporation's assets and made available for meeting the claims of its unsecured creditors; (2) one or more persons were officers, directors, or stockholders of both corporations.' " (*Ibid.*)

Here, Plaintiff alleges that Phase9MotorSports and Treasures MotorSports are controlled by the same principal and sole member and manager, Treasures MotorSports received substantially all of Phase9MotorSports's assets without fair market compensation, and Treasures MotorSports continued operations after Phase9MotorSports ceased meaningful activity after bankruptcy, and the transfers have left Phase9MotorSports insolvent and unable to satisfy Plaintiff's judgment. These allegations adequately support a cause of action for successor liability.

Defendant is ordered to file an answer to the Complaint within 20 days.

		Moving party to give notice.
3.	30-2024-01448151 Conley vs. Kang	1. Motion to Be Relieved as Counsel of Record The unopposed motion of attorney Jessica Williams of Sweet James LLP to be relieved as counsel for Plaintiff DaVon James Conley is GRANTED. Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. Moving attorney to give notice.
5.	30-2023-01313333 Cortez vs. Ashe	1. Motion to Be Relieved as Counsel of Record 2. Motion to Be Relieved as Counsel of Record 3. Motion to Be Relieved as Counsel of Record The unopposed motions of attorney Donald Hartunian as counsel for Plaintiffs Mario Cortez, Maria Cortez, and Guadalupe Cortez are GRANTED. Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362. The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client. Moving attorney to give notice.
6.	30-2023-01350570 Loan Servicer LLC vs. Harmony Escrow, Inc	1. Motion for Leave to File Amended Cross-Complaint 2. Status Conference re: Settlement Defendant/cross-complainant Harmony Escrow, Inc. (“Defendant”) moves for an order granting it leave to amend its Cross-Complaint and Answer to the First Amended Complaint, and deeming the proposed pleadings filed as of the date of the granting of this Motion. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc., § 473(a)(1).) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530.) Here, Defendant’s proposed amendments do not add any new parties or theories of liability to this litigation. Defendant learned about the facts giving rise to the amendments in early 2025 but did not

		file this Motion until after the parties conducted a mediation in September 2025 and it became apparent that the parties would not stipulate to the amendments. Despite the delay, there is no indication that any party will be prejudiced by the amendments. Thus, the Motion is GRANTED. Defendant requests that the Court order the Amended Cross-Complaint and Amended Answer attached to the supporting declaration deemed filed as of the date of the order granting leave to amend. The request is denied. Defendant is ordered to file and serve the Amended Cross-Complaint and Amended Answer within 10 days of the date of this order. Moving party to give notice.
7.	30-2025-01491450 Stahl vs. Volkswagen Group of America, Inc	1. Motion to Compel Production Defendant, Volkswagen Group of America, Inc. (“VWGOA”), moves for an order compelling Plaintiff, Kathleen A. Stahl (“Plaintiff”), to provide verified responses to Inspection Demand, Set One, and for an order for monetary sanctions in the amount of \$1,837.50 against Plaintiff and her counsel of record. The motion is DENIED, as MOOT. If a party to whom requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §2031.300(a)-(b).) The motion to compel may be heard even if untimely responses are served after the motion is filed. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 408 (“<i>Sinaiko</i>”).) By operation of law, if a party fails to serve a timely response to requests for production, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2031.300(a); <i>Sinaiko, supra</i>, 148 Cal.App.4th at p. 408; <i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.) Here, on January 22, 2026, VWGOA served its Inspection Demand, Set One on Plaintiff. (Declaration of Lindsey M. Espinosa, ¶ 3, Ex. A.) The deadline to respond was extended to March 25, 2026. (<i>Id.</i>, ¶ 4.) VWGOA’s counsel sent a meet and confer email on April 14, 2026. (<i>Id.</i>, ¶ 6.) As of the time of the filing of the motion, Plaintiff failed to provide any substantive, verified responses to VWGOA’s Inspection Demand, Set One, and failed to respond to the meet and confer email. (<i>Id.</i>, ¶¶ 5, 6.) The opposition provides that on June 24, 2026, Plaintiff served “Further Responses” to Defendant’s Requests for Production, Set One, with verifications served on June 25, 2026. (Declaration of Paul Peterson, ¶ 3.) The reply does not dispute that responses to the subject Inspection Demand, Set One, have been served. Although VWGOA argues in reply that the responses are not Code-compliant and/or are deficient, there is insufficient information to evaluate the responses that were served. Based on the foregoing, VWGOA’s motion to compel responses to Inspection Demand, Set One, is DENIED as MOOT. As to <u>monetary sanctions</u>, Code of Civil Procedure section 2031.300 provides that “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.300(c).)

		Additionally, the court may impose a monetary sanction ordering that one engaging in conduct that is a misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, included attorney’s fees incurred as a result of that conduct. (Code Civ. Proc. § 2023.030(a).) The court shall impose a monetary sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Misuses of the discovery process include “[f]ailing to respond or to submit to an authorized method of discovery.” (Code Civ. Proc. § 2023.010(d).) The burden of showing that a party acted with substantial justification or that other circumstances make the imposition of the sanction unjust is on the losing party. (<i>Golf & Tennis Pro Shop, Inc. v. Superior Court</i> (2022) 84 Cal.App.5th 127, 139.) Here, VWGOA requests monetary sanctions in the amount of \$1,837.50 consisting of 1.5 hours to draft the instant motion, and 3.0 hours to review the opposition and to prepare a reply and appear at the hearing at \$395 per hour, plus a \$60 filing fee. (Declaration of Lindsey M. Espinosa, ¶ 8.) Plaintiff fails to show she acted with substantial justification or that other circumstances make the imposition of the sanction unjust. Accordingly, the Court GRANTS monetary sanctions in the reduced amount of \$850 against Plaintiff and her counsel, Strategic Legal Practices, APC, to be paid within 30 days. Defendant VWGOA to give notice.
8.	30-2026-01566933 In Re: Petition of CBC Settlement Funding, LLC	1. Motion-Other Petitioner, CBC Settlement Funding, LLC, petitions and moves for an order approving the transfer of structured settlement payment rights by and between Matthew Proost, as transferor (“Payee”), and CBC Settlement Funding, LLC, as transferee pursuant to Insurance Code section 10134 et seq. The First Amended Verified Petition (“Petition”) and Amended Motion are GRANTED. Petitioner to submit formal order. The Court has reviewed and approves the Petition to sell to the transferee future payments. The Court approves Payee transferring the Payee’s rights to structured settlement payments totaling \$524,533.53 in exchange for a purchase price of \$260,000. The Court finds the following: (1) The transfer is in the best interest of the payee taking into account the welfare and support of the payee’s dependents. (2) The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived in writing the opportunity to receive the advice. (3) The transferee has complied with the notification requirements of Insurance Code § 10136 and the transfer agreement complies with Insurance Code §§ 10136 and 10138. (4) The transfer does not contravene any applicable statute or the order of any court or other government authority. (5) The payee understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Insurance Code § 10136. (6) The payee understands and does not wish to exercise the payee’s right to cancel the transfer agreement. (Insurance Code § 10139.5(a).) Petitioner to give notice.

10.	30-2025-01514516 Zhu vs. Wu	1. Motion to Appear Pro Hac Vice Attorney Michael Wolak III filed an application to appear pro hac vice on behalf of Defendants American Blast Systems, Inc. and American Blast System Payments LLC. The application is unopposed. Moving attorney met the requirements of California Rules of Court, rule 9.40 except that Moving Attorney has not “file[d] with the court a verified application <u>together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application</u> on all parties who have appeared in the cause and <u>on the State Bar at its San Francisco office.</u>” (Cal. Rules of Court, rule 9.40, subd. (c).) The Application states that Moving Attorney “<i>will</i> submit a service copy of the subject motion to allow myself to appear as counsel pro hac vice, the [Proposed] Order thereon, the attached Memorandum of Points and Authorities, my Verified Application and the Declaration of Daniel A. Solitro, upon the State Bar of California through AIMS. Upon submission, I will pay \$50.00 to the State Bar of California as the fee required by California Rules of Court Rule 9.40 for certification and admission pro hac vice to the State Bar of California.” (ROA 84, Verified Application of Michael Wolak III, ¶ 7 [emphasis added].) This does not, however, establish that timely “notice of hearing of the application . . . on the State Bar at its San Francisco office” <i>occurred</i>. The proof of service only establishes service on Defendants Ji Wu, John Chung-Ching Tu, and Blue Gum Warehouse, LLC. If Moving Attorney can establish timely service, as set forth above, before or at the hearing, the Court is inclined to grant the motion at the hearing. If such timely service is not established on the State Bar of California, the Motion will be <i>continued</i> to a date that will allow such compliance and Moving Attorney will be ordered to file the requisite proof of service pursuant to California Rules of Court, rule 9.40(c). Moving attorney to give notice.
11.	30-2025-01453654 400 Spectrum Holdings LLC vs. McSen Realty Corp.	1. Motion to Compel Production 2. Case Management Conference Plaintiff 400 Spectrum Holdings LLC (Plaintiff or "Landlord") seeks to order Defendant McSen Realty Corp (Defendant or “Tenant”) to serve initial responses to Landlord's Requests for Production of Documents (Set One) and for an award of monetary sanctions in the amount of \$1,297.20 payable by Defendant and defendant’s attorney, Hanzhang Xu, pursuant to CCP§§ 2030.290, 2031.300, 2033.280, and 2023.030(a). (ROA 93) Pursuant to CCP§ 2031.300, if a party to whom a demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, the party making the demand may move for an order compelling response to the demand. The Code of Civil Procedure requires the Court to issue sanctions against a party for its failure to respond to discovery. CCP§ 2031.300(c). In this instance, on August 29, 2025, Plaintiff’s attorney propounded Requests for Production of Documents (Set One) on Defendant McSen Realty Corp. Defendant has not served any responses, nor has it attempted to request any extension to respond, despite Landlord's meet and confer efforts.

		(Decl. of Olinik¶6.) Defendant fails to show it acted with substantial justification or that other circumstances make the imposition of the sanction unjust. As such, the unopposed Motion is GRANTED. Defendant McSen Realty Corp. is ordered to provide verified responses to Request for Production of Documents (Set 1), without objections, within 30 days service of the Notice of Ruling. Sanctions against Defendant McSen Realty Corp are awarded in the amount of \$1000, to be paid within 30 days Moving Party to give notice.
12.	30-2024-01412435 Beseau vs. Ladera Ranch Maintenance Corporation	1. Motion for Summary Judgment and/or Adjudication Cross-Defendant Bobrick Washroom Equipment Inc. (“Cross-Defendant”) filed a motion for summary judgment, seeking summary judgment or adjudication on the (1) first cause of action for implied indemnity, (2) second cause of action for comparative contribution, (3) third cause of action for declaratory relief, and (4) fourth cause of action for negligence (products liability) as alleged in Ranch Maintenance Corporation’s Cross-Complaint against Cross-Defendant Bobrick Washroom Equipment Inc. Cross-Complainant Ranch Maintenance Corporation (“Cross-Complaint”) opposes the motion. For the reasons discussed below, and based on applicable law, the Motion is DENIED. I. CROSS-DEFENDANT’S LIABILITY FOR THE SHOWER BENCH COLLAPSE IS A TRIABLE ISSUE OF FACT Cross-Complainant seeks to hold Cross-Defendant liable for the shower bench collapse pursuant to the legal theory of negligence based on product liability. In the operative Cross-Complaint, Cross-Complainant alleges that Cross-Defendant negligently “designed, manufactured, assembled and sold the BOBRICK shower seat/bench, model no. 5181 or 5191.” (Cross-Complaint, ¶ 31.) The Cross-Complaint states: “Cross-Complainant is informed and believes and thereon alleges that Cross- Defendant, BOBRICK, and ROES 1 through 20 knew that the BOBRICK shower seat/bench, model no. 5181 or 5191 was manufactured, designed, assembled and sold for use by Cross-Complainant but was defective and dangerous in the manner in which it was intended to be used by failing to support individuals with a weight of less than 500 pounds.” (Cross-Complaint, ¶ 36.) In a discovery response, Cross-Complainant stated: “The design of the bench that failed, produced by Bobrick, does not have direct vertical support as the subsequently developed and designed bench in their product catalog. Given that design, the potential for excessive forces on the attachment screws, consistent with the design of the accident bench, is magnified given the rise that the potential failure, that Plaintiff’s claims occurred, gave rise to her accident and injury.” (Response to Special Interrogatory No. 18.)

“One may seek recovery in a products liability case on the theory of negligence.” (*Johnson v. United States Steel Corp.* (2015) 240 Cal.App.4th 22, 30–31.)

To prevail on the claim, plaintiff must show that (1) defendant owed plaintiff a legal duty of care, (2) defendant breached that duty, (3) the breach was a proximate or legal cause of the injury, and (4) the defect in the product was due to defendant’s negligence. (*Gonzalez v. Autoliv ASP, Inc.* (2007) 154 CA4th 780, 793; see also (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1304-1305 [“a plaintiff must also prove ‘an additional element, namely, that the defect in the product was due to negligence of the defendant.’ ”].)

“Design defects appear in products that, although properly manufactured, are dangerous because they lack a critical feature needed to ensure safe use.” (*Williams v. J-M Manufacturing Co., Inc.* (2024) 102 Cal.App.5th 250, 256–257, *review denied* (Aug. 28, 2024).)

“[T]he test of negligent design ‘involves a balancing of the likelihood of harm to be expected from a machine with a given design and the gravity of harm if it happens against the burden of the precaution which would be effective to avoid the harm.’” (*Chavez v. Glock, Inc.* (2012) 207 Cal.App.4th 1283, 1304–1305.)

The Court finds that, whether the shower bench contained a design defect, is a triable issue of material fact that must be resolved by the fact finders.

For example, Cross-Complainant argues that the design is defective because Cross-Defendant opted not to include legs for the shower bench. Whether the shower bench contained legs is not a disputed fact – the parties agree that the shower bench did not have legs. Defendant argues that the absence of legs did not cause or contribute to the collapse whereas Plaintiff argues this absence of bench legs was negligent.

As discussed in *Ortiz v. Daimler Truck North America LLC* (2025) 112 Cal.App.5th 608, 622, *review denied* (Oct. 15, 2025), when a product omits an available safety feature designed to prevent an accident, it is a question for the jury as to whether that omission was ultimately negligent and a proximate cause of the accident. In *Ortiz*, the car designer omitted “Detroit Assurance 4.0,” which is a collision avoidance system. (See *Ortiz v. Daimler Truck North America LLC* (2025) 112 Cal.App.5th 608, 622 [“Under plaintiffs’ evidence, then, a reasonable juror could find that Ortiz died because Daimler Trucks omitted an available safety feature designed to prevent this very type of foreseeable accident. Those types of facts support a finding of proximate cause.”].) The *Ortiz* court found that whether the defendant’s decision to omit the safety feature constituted a negligent design such that it caused the accident at issue in that case was a triable issue of fact for the jury to determine. This Court finds that the *Ortiz* analysis and conclusions apply.

Here, Cross-Defendant omitted shower legs. Based on the above, whether the omission of shower legs caused the shower bench to collapse and the subject accident to occur is a triable issue of fact for the jury. Cross-Defendant’s argument that the shower bench was installed improperly and that it functioned properly for over 20 years are persuasive arguments but only amount to facts for the jury to weigh in determining what ultimately caused the collapse.

Given the above, the Court finds that Cross-Defendant’s liability for the shower bench collapse is a triable issue of act. The Motion for Summary Judgment is **DENIED** as to the fourth cause of action for negligence based on products liability.

Each of the remaining causes of action depend on the Court finding that Cross-Defendant is not liable for Plaintiff's damages. As discussed above, there are triable issues of material fact as to whether Cross-Defendant's design of the shower bench at issue caused or contributed to the accident. For the same reasons discussed above, the Motion for Summary Judgment is **DENIED** as to the first cause of action for implied indemnity, second cause of action for contribution, and third cause of action for declaratory relief.

In sum, the Motion is **DENIED in its entirety**.

The Court also notes that Cross-Defendant drafted the separate statement such that all elements of the fourth cause of action are presented under the same issue. The separate statement contains four issues, which are broken down by cause of action. The separate statement does not separately address each element of those causes of action. Moreover, each issue is supported by the same set of facts, even though they are separated into separate issues. Pursuant to Code of Civil Procedure sections 437c, the separate statement shall only set forth material facts and there must be no triable issue as to any material fact presented in the separate statement. (Code Civ. Proc., § 437c, subd. (b) and Cal. Rules of Court, rule 3.1320, subd.(d)(1).) Accordingly, if there is a triable issue as to any of the facts, all arguments fail since they are presented under the same issue and each issue is supported by the same facts.

II. OBJECTIONS

A. Cross-Complainant's Objections

Cross-Complainant's objections to the admissibility of the installation guide are **OVERRULED**. Cross-Complainant takes issue with the Installation Instructions proffered by Cross-Defendant, arguing that such instructions were dated 2018 and therefore are inapplicable. As Cross-Defendant points out, however, Nadan testified that such instructions are the instructions for the shower bench at issue. At this time, the Court finds that Nadan has sufficient personal knowledge to testify that the 2018 installation guides are the same as those used when the shower bench at issue was sold/installed.

Cross-Complainant's objections to Nadan's conclusion on the cause of the shower bench collapse is **SUSTAINED**. Nadan has not established the requisite personal knowledge or expertise to testify as to the cause of the shower bench collapse. Nadan testified that in his role at the Cross-Defendant's company, he "oversees legal matters and managing outside counsel, overseeing corporate real estate transactions and development and managing Bobrick's mergers and acquisitions." This is insufficient to testify as to the cause of the shower bench collapse.

The Court declines to address the objections to Plaintiff's medical records as such records were not "material to its disposition of the motion." (Code Civ. Proc., § 437c. subd. (q).)

Cross-Complainant's objections to the expert opinion of James Mason are **OVERRULED** for the purposes of this motion only.

B. Cross-Defendant's Objections

Cross-Defendants objections to the Declaration of Christina Bennett are **OVERRULED**.

Cross-Defendants objections to the Declaration of Ken Gibson are **OVERRULED**.

Cross-Complainant to give notice.

13.	30-2023-01336786 Vietnamese American Buddhist Center for Charitable Services vs. Bui	1. Miscellaneous Hearing
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